

Federal Maritime Commission, Washington, DC.

Informal Docket No. 1967(I)

Moses Damisa (Claimant)

vs.

Trans Atlantic Shipping LLC (Respondent)



I. The claimant named above is the owner and principal officer of Zoolch Innovative Systems LLC, a business that procures and supplies goods and services to foreign clients and is located at 3521 Shadowood Pkwy SE, Atlanta GA 30339 and #220, 2400 Herodian Way SE, Smyrna GA 30080.

II. The respondent named above is an Ocean Transportation Intermediary (International Freight Forwarder and NVOCC with FMC number - 019215NF). The company has a container warehouse overseen by Alicia Martin, located at 30 Telfair Pl, Garden City, GA 31408 and a main office located at 4907 International Parkway, Suite 1081, Sanford FL 32771. The principal officers/managing members of the company are Stacey Voit and Tim Voit.

III. In line with Section 10(d) of the Shipping Act of 1984 (46 U.S.C. 41102 (c)), the respondent failed to load and deliver the entirety of my property to the agreed destination; over the three (3) month period it took for the 20ft container to travel and arrive at the agreed destination and clear customs, the respondent failed to inform me that said property was still in their possession and was not loaded into the container until it was noticed at the agreed destination that said property was missing and I contacted the respondent and went to their warehouse and found the remainder of my property.

A. Though the respondent may attempt to deny, they willfully did not inform me that said property (7 boxes - each sized, 22 x 18 x 18) was not loaded and delivered to the agreed destination; after asking them about the boxes, they only admitted to having 2 out of 7 boxes until I found the remaining 5 boxes during an unannounced trip to the respondent's warehouse, in the exact same area they had been stored when I packed and marked them month's before - upon my discovery of said property at their warehouse, they failed to treat the situation with the urgency and importance it required; instead, the respondent tried to convince me to let them ship my

property in the container of a third party (one of their customers) to which I disagreed due to the urgency of the delivery and the privacy and security concerns of my client.

- B. Upon expressing my displeasure and disagreeing with the respondents delay tactics and ineffective solutions to their negligence and error of omission after 2 weeks of attempting to find a mutual resolution, I was issued an ultimatum by the respondent - despite the 3 month delay they had caused me, they instructed me to either allow them ship my property in the container of one of their other customers or to remove my property from their warehouse if I did not agree for them to ship my property as they suggested, and informed me that they would not communicate further with me.
- C. I was assured by the Respondent that they were professionals at their job and that there was no need for me to be present to witness the loading of my property into the container they booked on my behalf after I expressed concerns and interest in being present at the time the container was to be loaded but the respondent did not live up to that promise and their failure has directly resulted in the cancellation of my contract.

IV. The respondent violated Section 10(d) of the Shipping Act of 1984 (46 U.S.C. 41102 (c)), which states that, "A common carrier, marine terminal operator, or ocean transportation intermediary may not fail to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property."

V. That due to the respondent's failure to load and deliver the entirety of my property as agreed, my contract with the company that provides me access and opportunities to work with third party clients was terminated on the 9th of November, 2020 - this termination will cause my business to lose tens of thousands of dollars in revenue over the next two (2) years. In this light I request damages for the injury caused as a result of the respondent's incompetence, in the amount of \$50,000 (Fifty thousand dollars).

VI. The undersigned authorizes the Small Claims Officer to determine the above-stated claim pursuant to the informal procedure outlined in subpart S (46 CFR 502.301-502.305) of the Commission's informal procedure for adjudication of small claims subject to discretionary Commission review.

Date: 12/02/2020

Claimant's signature: 

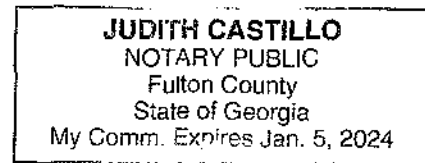
Claimant's Address: 3521 Shadowood Pkwy SE, Atlanta GA 30339 and #220, 2400 Herodian Way SE, Smyrna GA 30080.

The claimant, Moses Damisa and is the person who signed the foregoing claim, that he or she has read the foregoing and that the facts set forth without qualification are true and that the facts stated therein upon information received from others, affiant believes to be true.

Subscribed and sworn to before me, a notary public in and for the State of Georgia County of Cobb, this 2nd day of December 2020.

(Notary Public Signature: 

My Commission expires: Jan/05/2024





ORIENT OVERSEAS CONTAINER LINE * ORIGINAL

BILL OF LADING

(Non Negotiable Unless Consigned to Order)

SHIPPER/EXPORTER (COMPLETE NAME AND ADDRESS) TRANS ATLANTIC SHIPPING L.L.C. C/O MOSES Z DAMISA 25519 HAWKS RUN LN SORRENTO, LAKE, FLORIDA - 32776 UNITED STATES		BOOKING NO. 2641380800	BILL OF LADING NO. OOLU2641380800
CONSIGNEE (COMPLETE NAME AND ADDRESS) ZIPROV ENTERPRISES 1A, ICNL ROAD KADUNA, NIGERIA TEL. 234 809 977 9074		FORWARDING AGENT-REFERENCES FMC NO.: FMC 19215 TRANS ATLANTIC SHIPPING L.L.C. 25519 HAWKS RUN LN SORRENTO, LAKE, FLORIDA - 32776 UNITED STATES	
NOTIFY PARTY (COMPLETE NAME AND ADDRESS) (It is agreed that no responsibility shall be attached to the Carrier or its Agents for failure to notify (see Clause 13 on reverse)) SAME AS CONSIGNEE		ALSO NOTIFY PARTY-ROUTING & INSTRUCTIONS # GEORGIA, UNITED STATES	
PRE-CARRIAGE BY	PLACE OF RECEIPT SAVANNAH, CHATHAM, #	LOADING PIER/TERMINAL	ORIGINALS TO BE RELEASED AT CHARLESTON
VESSEL/VOYAGE/FLAG CHICAGO EXPRESS 091E	GERMANY PORT OF LOADING SAVANNAH	TYPE OF MOVEMENT (IF MIXED, USE DESCRIPTION OF PACKAGES AND GOODS FIELD) CY/CY	
PORT OF DISCHARGE LAGOS	PLACE OF DELIVERY LAGOS, NIGERIA		

(CHECK "HM" COLUMN IF HAZARDOUS MATERIAL)		PARTICULARS DECLARED BY SHIPPER BUT NOT ACKNOWLEDGED BY THE CARRIER			
CNTR. NOS. W/SEAL NOS. MARK & NUMBERS	QUANTITY (FOR CUSTOMS DECLARATION ONLY)	DESCRIPTION OF GOODS	GROSS WEIGHT	MEASUREMENT	
X20200618547430	1 UNIT	2019 HONDA ODYSSEY VIN 5FNRL6H21KB129148 HS 870323	2092.000KGS		
	28 BOXES	28 BOXES - HOUSEHOLD GOODS AND PERSONAL EFFECTS **IN TRANSIT TO KADUNA**	200.000KGS		

OCEAN FREIGHT PREPAID
TOTAL NO. OF CONTAINERS/PACKAGES RECEIVED & ACKNOWLEDGED BY CARRIER FOR THE PURPOSE OF CALCULATION OF PACKAGE LIMITATION (IF APPLICABLE): 1 CONTAINER(S)/PACKAGE(S)
DESTINATION CHARGES COLLECT PER LINE TARIFF, AND TO BE COLLECTED FROM THE PARTY WHO LAWFULLY DEMANDS DELIVERY OF THE CARGO.
SHIPPER LOAD AND COUNT, CONTAINER(S) SEALED BY SHIPPER
** TO BE CONTINUED ON ATTACHED LIST **

NOTICE 1: For cargo to or from the United States of America, (i) Clause 4 and 23 on the reverse side hereof limit the Carrier's liability to a maximum of U.S.\$500 per package or customary freight unit by virtue of incorporation of the U.S. Carriage of Goods by Sea Act ("COGSA"), unless the Merchant declares a higher cargo value below and pays the Carrier's ad valorem freight charge; and (ii) if carried on deck at Merchant's risk as to perils inherent in such carriage but in all other respects subject to the provisions of COGSA.
NOTICE 2: See Clause 28 on the reverse side hereof. Notice to Endorsee and/or Holder and/or Transferee.
NOTICE 3: If Goods carried on deck at Merchant's risk without responsibility for loss or damage howsoever caused.

Declared Cargo Value US\$ If Merchant enters a value, Carrier's limitation of liability shall not apply and the ad valorem rate will be charged.

FREIGHT & CHARGES PAYABLE AT/ BY:		SERVICE CONTRACT NO. MT206640V0045	DOC FORM NO.	COMMODITY CODE	Received the Container/Packages or other units indicated in the box identified as "Total No. of Containers/Packages received and acknowledged by Carrier" to apparent good order and condition, unless otherwise indicated, to be transported and delivered as herein provided. The receipt, custody, carriage and delivery of the goods are subject to the terms appearing on the face and back hereof and to the Carrier's applicable tariff. In witness whereof 0 original bills of lading have been signed, one of which being accomplished, the other(s) to be void. DATE CARGO RECEIVED 19 JUN 2020 DATE LADEN ON BOARD <i>7.2</i> 6 JUL 2020 DATED 6 JUL 2020
CODE	TARIFF ITEM	FREIGHTED AS	RATE	PREPAID	
				COLLECT	

The printed terms and conditions appearing on the face and reverse side of this Bill of Lading are available at www.oocl.com, in OOCL's published US tariffs, and in pamphlet form.

* STRIKE OUT FOR ON BOARD VESSEL BILL OF LADING
* SEE CLAUSE 1 ON REVERSE SIDE
* SEE CLAUSE 2 ON REVERSE SIDE
GF001
HQD 01/01

SIGNED OOCL (USA) INC
BY: *F Lin*
ORIENT OVERSEAS CONTAINER LINE, AS CARRIER



PAGE: 2 OF 2
B/L NO.: OOLU2641380800

SIGNED OOCL (USA) INC
BY:

7 Lin, as agent for
ORIENT OVERSEAS CONTAINER
LINE, AS CARRIER.

Memorandum in support of Claim filed against Trans Atlantic Shipping LLC (FMC # - 019215NF)

In line with the provisions of Section 11(a) of the Shipping Act of 1984 (46 U.S.C. 41301 (a)) and Section 10(d) of the Shipping Act of 1984 (46 U.S.C. 41102 (c)), I Moses Damisa of Zoolch Innovative Systems LLC located at 2400 Herodian Way SE, Smyrna GA 30080, (hereinafter referred to as the Claimant) files this complaint against Trans Atlantic Shipping LLC (FMC # - 019215NF) with container warehouse located at 30 Telfair Pl, Garden City, GA 31408 and main office located at 4907 International Parkway, Suite 1081, Sanford FL 32771- (hereinafter referred to as the Respondent) to claim violation occurring in connection with the foreign commerce of the United States and to seek reparation in the amount of \$50,000 (fifty thousand dollars) for injury caused by that violation.

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After the arrival and customs clearing of a container that was booked and shipped on my behalf by the respondent, it was noticed that some of my property (7 boxes sized 22" x 18" x 18") was missing from the container - once this discrepancy was noticed, I contacted the manager (Alicia Martin) at the respondent's container warehouse (her primary office location) via text message at 11:28 EST on 10/7/2020 to inquire about my missing property and she suggested that the items may have been removed from my container by the U.S Customs & Border Patrol during a customs hold of the container and was told that she would check the respondents warehouse and get back to me to which I consented, hoping she will get back to me within a few hours but she did not.

The next day - (10/8/2020), after waiting and not hearing from the respondents manager, I sent an email to inquire on the status of my missing boxes at 10:46am - in a bid to confirm my suspicions that the respondent was intentionally keeping information from me, I suggested that by my count, there were just 2 boxes missing to which the respondent's manager immediately replied at 10:52am that she checked the warehouse the day before (7th) and both those boxes were at the warehouse - **please note that after the respondent's manager supposedly checked, she did still did not volunteer to notify me until I emailed to inquire on the status, the day after she claimed she confirmed they had my property in their possession.**

At 10:52am on 10/8/2020, upon receipt of her response and confirmation that they had possession of my property, I immediately left Atlanta for the 3 hours 40 minute drive to the respondent's warehouse in Savannah to confirm that they had my 7 missing boxes; I arrived at the respondent's warehouse at

approximately 3:30pm and inquired about the 2 boxes she said they had in their possession, she asked me to wait while she retrieved them and then left to get them. Right after she left to get the 2 boxes she claimed they had, I went into the room in which I packed my cargo for shipping prior to departure (this was the same room where most of my property had been stored prior to loading and shipping) and in this room, I found my additional property (5 boxes) which they never informed me was in their possession for the entire 3 month duration it took for the container to depart, arrive at its destination and clear customs, until it was discovered they were missing upon arrival and clearing of the container - while I was in this room, she came in with the 2 boxes she claimed to have found the day before.

When I inquired as to how they did not load and deliver all of my property, she feigned ignorance and said she didn't know how they missed it (the boxes had been clearly marked by me and stored in the exact same area where all of my property had been stored at their warehouse prior to the departure of the container). As we walked to her office, I asked about how they intended to resolve the issue and she suggested that they could include it in the container of a third party (one of their customer's that may have a container going to the same destination) - knowing the terms of agreement I have with my client, my delivery deadline and the time constraint involved in getting the boxes to the destination with an already extended delay, I immediately told her that her suggestion may not be viable as my client will not be comfortable having their goods shipped in a third party container due to privacy, and that to save lost time, airfreight will be the most viable option. I then proceeded to call my client in her presence while in her office and confirmed that my client did not agree to have the property shipped in a third party container and they'll prefer the boxes be air freighted to avoid any unforeseen risks and further delay.

I conveyed the information from my client to the manager as soon as I got off the phone and she said she had tried to reach the owner of the company but he was at the dentist's office and she'll get back to me with an update before the end of the day to let me know how they intended to resolve the issue to which I agreed. Before leaving the respondents office for Atlanta, I told the manager that due to the urgency of delivery to my client and to make things easier for them, I was going to bring one of the boxes back to Atlanta with me so I could send it to its destination without delay to which she responded that "she doesn't care if it's easier on them (Trans Atlantic Shipping)" thereby implying that the burden fell on the owner of the company. Later that evening, she sent me a text in which she apologized for sending a late update and conveyed that they were going to get the weight and dimensions of everything that was left out and compare rates so they can get everything out ASAP. I waited to hear back all day on the day

after (Thursday 10/9/2020) I returned from their warehouse but they did not contact me with an update so I sent the warehouse manager a text at 3:10pm asking for an update and got no response. I waited all day Friday and got no response from them and on Monday the 12th of October I sent a message inquiring about an update to which she replied we are working on this and asked if I knew the value of the goods at the warehouse which I immediately gave her.

I continued to wait until the 19th of October 2020 when I sent another email to the manager at the respondent's warehouse inquiring about an update and the estimated time of arrival of my property at the destination to which she said that they were working on the logistics and she will let me know the transit time as soon as they get a response from the carrier at that point I then informed her that I expected the respondent to cover the expenses of customs clearing at the destination because I had already spent almost \$10,000 to clear a container that was supposed to have contained all of my property and expected that expense to be covered by them due to their error and failure to deliver my property as agreed. On the 23rd of October 2020, I sent yet another message asking the manager if she had gotten a response from the carrier to which she replied that she had and that they had received a quote that was incorrect, I then asked what's next to which she replied that the only options available to me was for them to put the boxes in their next container or ship them to me in Atlanta - I then responded that their offer was unacceptable and if they insisted on imposing their ridiculous options on me without seeking a mutually beneficial resolution to the matter, I would be forced to seek redress with the relevant consumer protection agency or the Courts to which she replied on the 26th of October 2020.

In her response on the 26th of October, she made mention that my "attitude" and the cost of the air freight I had insisted on made it difficult for them and she gave me an ultimatum to either let them ship in a container or to come pick up my boxes; she also said she was not going to having any further discussion regarding the matter. She appeared to be conveniently ignorant of the difficulty and injury they had caused me due to; **a)** the fact that they had failed to deliver my property at its destination on time and as agreed, **b)** their failure to inform me that my property was at their warehouse for 3 months until I realized the property was missing after arrival at the destination, **c)** their failure to treat the situation with the urgency it required after I found my property at their warehouse. In the same email from the 26th of October, she included the final quote (which she said was too costly) for air freight they claimed to have received which was dated Tuesday, 20th October 2020 and was sent to them at 12:56pm; she forgot that on the 23rd of October 2020, she had said in her email that the quote they had

received was incorrect (the final quote she sent on 26th October which claimed was too costly was dated 20th October 2020).

She then went ahead to mention that other warehouses do not acknowledge if something is left out of a customer's container and that they were different and try to work out as reasonably as they can and that the only option they can offer is to ship by ocean and they will not take responsibility for clearing - 1.) they are no different than any warehouse that does not acknowledge if something is left out of a customer's container because in this case, some things - to be exact, seven (7) large boxes were left out of my container and the respondent failed to inform me about those seven (7) large boxes until I realized that the boxes were missing after arrival at its destination three months later, and even after I contacted them, they only admitted to having possession of two boxes until I showed up at their warehouse unannounced and located the remaining 5 boxes myself. 2.) They never tried to come to a reasonable solution, they tried to delay me for over two weeks hoping that I was simply going to tow their line. 3.) they never apologised for their error and failure to deliver my property, 4.) they never proactively volunteered information regarding my property until after I caught them in their error and failure to deliver, 5.) they never treated the situation with the urgency it deserved, 6.) they never provided updates without me asking and even when I asked, they made it seem like I was a burden and outside of my rights to do so. On the 2nd of November 2020, I went back to their warehouse in Savannah to pick up the remaining of my property at their warehouse and was able to get a quote for less than half the price they had claimed they got quoted, in less than 5 hours after I left their warehouse.

In retrospect, I realize the respondent never intended to seek a resolution in good faith, they tried to drag things out as long as they could in a bid to force me to agree to their terms despite the fact that they failed in their obligation to deliver, never informed me that they had my property in their possession for 3 months and never fully admitted the exact number of my property in their possession until I found out for myself. I have attached copies of the bill of lading, correspondence, relevant documents and photos to my complaint. My business and livelihood is dependent on my ability to deliver orders to my clients; I earn commissions on goods and services that I buy, ship and deliver to my clients within an agreed upon delivery schedule and within an agreed upon budget, when I fail to do so, I am exposed and at the risk of losing my clients (my livelihood). Due to the negligence, nonchalance,

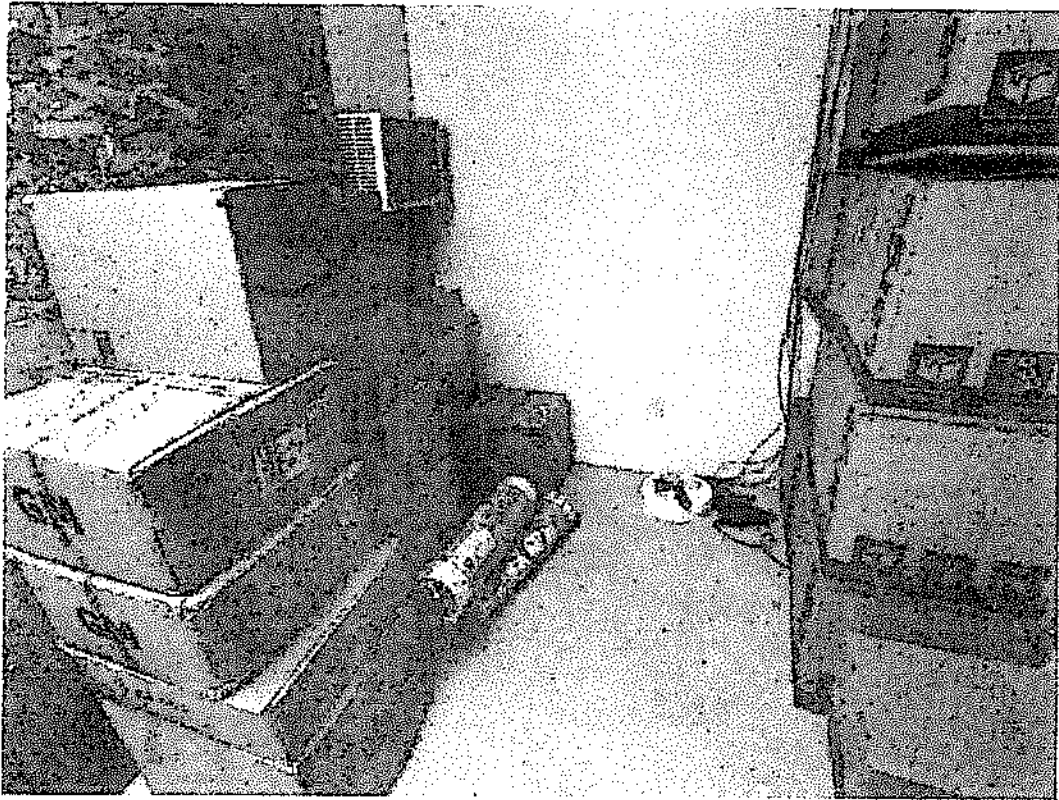
incompetence and apathy of the respondent by their failure to deliver my property to its destination as agreed upon, their failure to promptly notify me of my property in their possession for 3 months until I realized the property was missing, and their unwillingness to correct their error with the urgency and attention it deserved after I caught on to their failure, my contract with the company that provides me access and opportunities to work with high valued clients was terminated - this termination will cause my business to lose opportunities to earn tens of thousands of dollars in revenue.

As I stated at the beginning of this memorandum, it is in this light that I hereby file this complaint with the Federal Maritime Commission, under the provisions granted by Section 11(a) of the Shipping Act of 1984 (46 U.S.C. 41301 (a)) and Section 10(d) of the Shipping Act of 1984 (46 U.S.C. 41102 (c)), to claim a violation that occurred in connection with the foreign commerce of the United States and to seek reparation in the amount of \$50,000 (fifty thousand dollars) for the injury caused by the violation of the respondent.

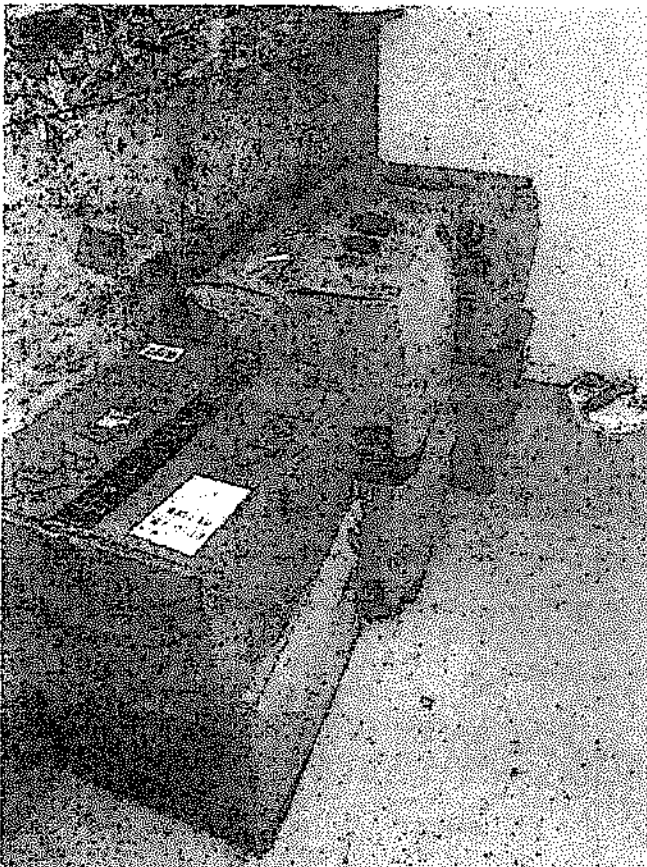
[49 FR 44369, Nov. 6, 1984, as amended at 64 FR 7812, Feb. 17, 1999; 66 FR 43513, Aug. 20, 2001; 74 FR 50716, Oct. 1, 2009; 79 FR 46715, Aug. 11, 2014]

(Pub. L. 109-304, § 7, Oct. 6, 2006, 120 Stat. 1540.)

Pictures



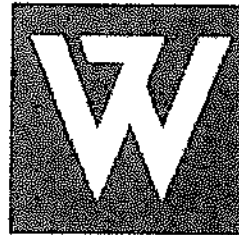
May, 2020 - Some of the Boxes at respondent's warehouse (before loading and shipping)



October 8th, 2020 - Boxes that were not loaded and delivered at respondents warehouse



November 2nd, 2020 - Boxes picked up by claimant from respondent's warehouse



SEVEN
WEST
CONTRACTORS
LTD

www.sevenwestltd.com
RC-694777

9TH November 2020

The Managing Director
Mr Moses Damisa
Zoolch Innovative Systems LLC
3521 Shadowood PKWY SE
Atlanta
Georgia

Dear Sir

Contract Termination

It is with much regret that we hereby terminate the Contract Agreement executed with you with immediate effect. This notice meets the compliance requirements regarding all terms and delivery timelines as stated in the agreement.

We appreciate the business we have done together over the last three years but due to the missing items in the last container you shipped to the Third Party Client we referred to you with **BOL # - OOLU2641380800** and your inability to remain in compliance with the terms of agreement, we have lost confidence in your ability to deliver on future orders and are forced to end our business relationship with you.

This letter dated 9th November, 2020 shall acknowledge our decision to terminate the contract between us in line with the terms of the agreement.

We would like to thank you and offer our best wishes for all your future endeavors.

Yours sincerely

Oziegbe Igheodalo
Director

HEAD OFFICE
No. 2 Oro Ago Crescent,
Gerika II
Abuja

AS LIAISON
No. 4 Masilar Close off
Durban Street Wuse 11
Abuja

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Plateau State

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